



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 34870194

Date: JAN. 17, 2025

Appeal of Texas Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, an information technology (IT) business analyst, seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition concluding that the record did not establish that a waiver of the required job offer, and thus of the labor certification, would be in the national interest. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act.

An advanced degree is any U.S. academic or professional degree or a foreign equivalent degree above that of a bachelor's degree. A U.S. bachelor's degree or foreign equivalent degree followed by five years of progressive experience in the specialty is the equivalent of a master's degree. 8 C.F.R. § 204.5(k)(2). Profession is defined as one of the occupations listed in section 101(a)(32) of the Act, as well as any occupation for which a U.S. baccalaureate degree or its foreign equivalent is the minimum requirement for entry into the occupation.¹ 8 C.F.R. § 204.5(k)(2).

If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement “in the national interest.”

¹ Profession shall include but not be limited to architects, engineers, lawyers, physicians, surgeons, and teachers in elementary or secondary schools, colleges, academics, or seminaries. Section 101(a)(32) of the Act.

Section 203(b)(2)(B)(i) of the Act. Our precedent decision, *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S. Citizenship and Immigration Services (USCIS) may, as matter of discretion,² grant a national interest waiver if the petitioner demonstrates that:

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and
- On balance, waiving the job offer requirement would benefit the United States.

Id.

II. ANALYSIS

The Petitioner's proposed endeavor, as described in the business plan submitted with his petition, is to come to the United States to work as a CEO for his startup IT consulting company. His company aims to "offer consulting services focused on cybersecurity, data privacy, and protection technology." Further, the Petitioner's company's asserted main goal "is to have a high social and economic impact by being a knowledge transfer company and sharing best market practices with the American information security technology community, developing cybersecurity professionals, reducing risk and financial loss for establishments, and extracting the most value in a high demanding IT-cybersecurity professional ecosystem." The Petitioner also claims his company will serve to address labor shortages in the cybersecurity and IT fields. The Petitioner further contends through his business plan that his background in the cybersecurity market in Brazil has given him the necessary experience to succeed in this role in the United States as a CEO.

The Director determined that although the Petitioner established the substantial merit of his proposed endeavor, he did not establish its national importance, that he is well-positioned to advance that proposed endeavor, or that it would be beneficial to the United States to waive the requirements of a job offer. We agree that the Petitioner has not established that his proposed endeavor has national importance and will dismiss the appeal accordingly.³

The first prong of the *Dhanasar* analytical framework, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. The endeavor's merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Dhanasar*, 26 I&N Dec. at 889. The Director found that the Petitioner did not establish that his proposed endeavor met the national importance element of the first prong of the *Dhanasar* framework. Specifically, the Director determined the Petitioner did not establish his proposed endeavor would have broader implications to the field of IT consulting or have

² See *Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Ninth, Eleventh, and D.C. Circuit Courts of Appeal in concluding that USCIS' decision to grant or deny a national interest waiver is discretionary in nature).

³ The Director denied the petition without making a determination as to the Petitioner's eligibility for EB-2 classification as an advanced degree professional. As the Petitioner has not overcome the Director's determination that the record did not establish a waiver of the required job offer, and thus of the labor certification, would be in the national interest, we need not address whether he is eligible for the EB-2 classification as an advanced degree professional.

significant potential to employ U.S. workers or otherwise have substantial positive economic effects such that he established its national importance.

Although any basic economic activity has the potential to positively impact a local economy, the Petitioner has not demonstrated how the economic activity directly resulting from his proposed endeavor would rise to the level of national importance. An endeavor may have national importance if it “has significant potential to employ U.S. workers or has other substantial positive economic effects, particularly in an economically depressed area . . .” *Id.* at 890. The Petitioner asserts on appeal that his consultancy firm will generate jobs for U.S. workers and will have a significant impact on the local and national economy through “increased tax revenues for federal and state governments.” In his business plan and on appeal, the Petitioner indicated his proposed IT consulting firm would have the potential to employ 23 people by the end of the first five years of business. However, the business plan does not provide sufficient explanation for the basis of these projections. Further, even if sufficient basis were provided for the proposed endeavor’s revenue and job creation projections, these figures do not establish that the Petitioner’s company would operate on a scale rising to the level of national importance. The Petitioner has not explained how his proposed employment metrics would have impact beyond his business’s area of intended operations. Upon de novo review, we find that the Petitioner did not establish his proposed endeavor would have substantial positive economic effects.

Despite establishing his venture has the potential to provide valuable services to his clients, the Petitioner did not establish the specific proposed endeavor will have substantial national implications or have a broader impact beyond the individual clients served by his company. On appeal, the Petitioner references numerous potential contributions of his business, such as, improving cybersecurity that will promote the growth of small businesses and the national economy, reducing breaches and exposure of data, and supporting the deployment of effective IT solutions that align with national interests such as defending critical infrastructure. He argues his consultancy firm will achieve these goals. He previously submitted a business plan and letters of recommendation to support his assertion that his proposed endeavor will have a significant, broad impact. The letters speak to the Petitioner’s skills and knowledge of identity management services, referring to him as “extremely competent and committed.” When determining the national importance of a proposed endeavor, under *Dhanasar*, we focus on “the specific endeavor that the foreign national proposes to undertake.” *Id.* at 889. In *Dhanasar*, we further noted that “we look for broader implications” of the proposed endeavor and that “[a]n undertaking may have national importance, for example, because it has national or even global implications within a particular field.” *Id.* Although the Petitioner asserts his company will have broad impacts on the national economy and on many facets of business development, identity management, and cybersecurity, the evidence submitted by the Petitioner does not establish his proposed endeavor would operate on such a large scale to have a national impact on any of his claimed industries. The Petitioner has also not established that his proposed endeavor stands to significantly reduce a national labor shortage in the IT field as claimed. Moreover, shortages of qualified workers are directly addressed by the U.S. Department of Labor through the labor certification process. The Petitioner has emphasized the importance of cybersecurity and claims his business will have national implications due to the need for the services provided and the value in growing businesses to support the U.S. economy. While we acknowledge the importance of the fields of business and information technology, the Petitioner did not establish his proposed endeavor would have broader implications to the overall fields to establish its national importance. *See id.* at 893.

Accordingly, we find that the record does not demonstrate national importance of the Petitioner's proposed endeavor as required by the first prong of the *Dhanasar* precedent decision, and the Petitioner has not demonstrated eligibility for a national interest waiver. As the identified reasons for dismissal are dispositive of the Petitioner's appeal, we decline to reach and hereby reserve remaining arguments concerning eligibility under the *Dhanasar* framework. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (stating that "courts and agencies are not required to make findings on issues the decision of which is unnecessary to the results they reach"); *see also Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

III. CONCLUSION

As the Petitioner has not met the requisite first prong of the *Dhanasar* analytical framework, we conclude that he has not established he is eligible for or otherwise merits a national interest waiver as a matter of discretion. The appeal will be dismissed for the above stated reasons.

ORDER: The appeal is dismissed.